

Petitioner, Cedric B. Moore, filed this writ action against respondent, Sherriff of the County of Contra Costa, to compel respondent to process his application for a permit to carry a concealed weapon ("CCW permit") according to "the standards and requirements of Penal Code §§26150 and 26202."

While respondent has not opposed this writ at this time, he has filed a demurrer, about which petitioner has not engaged in any substantive meet and confer, asserting that the respondent may not file a demurrer. Further, while a merits briefing schedule was set on March 13, respondent was not present for such setting due to some confusion and the courtroom being locked. (See Declaration of Abigail L. Dye in Support of Demurrer, ¶18.)

The Sherriff is permitted to file a demurrer pursuant to Code of Civil Procedure, § 1089 which states, "[o]n the date [...] on which the application for the writ is noticed, [...] the party upon whom the writ or notice has been served may make a return by demurrer, verified answer or both.")]

Still, the filing of a demurrer in place of an opposition is not a typical response and as such, the clerk has calendared the demurrer for hearing in November, leaving some ambiguity as to whether it should be considered an opposition to the petitioner's moving papers or an independent motion that begs its own opposition. The Court is inclined to construe the demurrer as an opposition to the moving papers, but seeks to confirm with the parties that this is aligned with their intentions.

Assuming neither side appears to contest this tentative ruling, the demurrer hearing shall be advanced and the merits hearing continued. Both hearings are re-set for August 13, 2026. If parties agree that no further briefing is needed, they shall file a stipulation to that effect by July 31st. Otherwise, any further oppositions shall be filed by July 31, 2026, and any replies filed by August 6, 2026.

12. 9:00 AM CASE NUMBER: N25-2180
CASE NAME: PETITION OF: ANDREW J. GALL AND SHAWNA L GALL
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: NEIGHBOR TO NEIGHBOR HOMES, LLC
TENTATIVE RULING:

This matter was previously continued to September 3, 2026.

13. 9:00 AM CASE NUMBER: N25-2180
CASE NAME: PETITION OF: ANDREW J. GALL AND SHAWNA L GALL
***HEARING ON MOTION IN RE: SET ASIDE DEFAULT AND DEFAULT JUDGMENT AGAINST QUALITY**
LOAN SERVICE CORPORATION
FILED BY: QUALITY LOAN SERVICE CORPORATION
TENTATIVE RULING: